

Court No. - 7

Case :- WRIT - C No. - 43936 of 2002

Petitioner :- Hind Industries Ltd. Ghaziabad

Respondent :- U.P. Electricity Power Corpn. Ltd. Thru' Chairman & Anr.

Petitioner Counsel :- M.A. Zaidi, S.A. Zaidi

Respondent Counsel :- Vinod Mishra

Hon'ble Rakesh Tiwari, J.

Hon'ble Naheed Ara Moonis, J.

Order on Modification Application No. 46001 of 2007

The writ petition has been disposed of finally vide order dated 10.10.2002 directing the petitioner to file representation before the Superintending Engineer of U.P. Power Corporation for decision by a speaking order within a period of one month.

This modification application has been filed on 25.11.2002 by the respondents wherein it has been averred that recovery of Rs.98,07,899.00 against the petitioner is above Rs. 10 lacs, hence the Committee at area level, CGM only has jurisdiction and authority to decide the representation of the consumer/petitioner in accordance with the Uttar Pradesh Electricity Supply Code-2002 (Distribution Code). It has also been averred that the Committee at Circle level/DGM (Superintending Engineer) has the jurisdiction to decide the representations etc. only up to the amount of Rs.2 lacs, hence the order dated 10.10.2002 passed by this Court may be modified directing the representation of the petitioner to be decided by the Committee at area level CGM instead of Superintending Engineer.

Sri Vinod Mishra, learned counsel for the respondents (as his Lordship then was) has been elevated to the Bench and has since retired. Learned counsels for the petitioners are not present to oppose this application which is listed today before this specially constituted Bench by nomination of one of us namely Hon'ble Naheed Ara Moonis in place of his Lordship Hon'ble M. Katju J. who was one of the Judges on the Bench when the petition was decided finally vide judgment and order dated 10.10.2002.

We have considered the modification application and as no one appears to oppose the application we are of the view that ends of justice would be accomplished if the modification sought for is allowed in the facts and circumstances of the case. The rule provides that the matter of recovery of above Rs.10 lacs be decided by the Committee Area Level, CGM.

For all the reasons stated above, it is directed that the Committee at area level, CGM instead of Superintending Engineer may decide the representation of the petitioner within a period of one month from today, if not already decided.

The modification application is disposed of accordingly.

Order Date :- 13.8.2010

CPP/-